

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3486

By: McCane

AS INTRODUCED

An Act relating to schools; amending 70 O.S. 2021, Section 5-141, which relates to superintendent contracts; prohibiting district superintendent compensation from exceeding certain amount in relation to teacher salaries; clarifying when prohibition applies; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 5-141, is amended to read as follows:

Section 5-141. A. Each school district of this state shall adopt a minimum salary schedule and shall transmit a copy of it to the State Board of Education within thirty (30) days after adoption. A school district shall not calculate salaries of teachers solely as a proportion of the salaries of the administrators of the district.

B. Districts shall be encouraged to provide compensation schedules to reflect district policies and circumstances, including

1 differential pay for different subject areas and special incentives
2 for teachers in districts with specific geographical attributes.
3 Districts may also adopt a salary schedule that provides additional
4 compensation for achieving certain ratings under the Oklahoma
5 Teacher and Leader Effectiveness Evaluation System (TLE) as set
6 forth in Section 6 of this act. Any salary schedule adopted by a
7 district pursuant to this section shall not set salaries at amounts
8 less than those set pursuant to Section 18-114.12 of this title.

9 C. The State Department of Education shall compile a report of
10 the minimum salary schedules for every school district in the state
11 and shall submit the report to the Governor, Speaker of the House of
12 Representatives, and President Pro Tempore of the Senate no later
13 than December 15 of each year.

14 D. 1. Each school district shall file within fifteen (15) days
15 of signing the contract, the employment contract of the
16 superintendent of the school district with the State Department of
17 Education. The Department shall keep all contracts available for
18 inspection by the public. The school district shall not be
19 authorized to pay any salary, benefits or other compensation to a
20 superintendent which are not specified in the contract on file and
21 shall not pay administrators any amounts for accumulated sick leave
22 that are not calculated on the same formula used for determining
23 payment for accumulated sick leave benefits for other full-time
24 employees of that school district and shall not pay administrators

1 any amounts for accumulated vacation leave benefits that are not
2 calculated on the same formula used for determining payment for
3 accumulated vacation leave benefits for other twelve-month full-time
4 employees of that school district.

5 2. No employment contracts of district superintendents shall
6 include a total compensation package that exceeds eight (8) times
7 the salary set by the district for a teacher with a bachelor's
8 degree and zero (0) years of experience. For purposes of this
9 paragraph, total compensation includes base salary, supplements,
10 fringe benefits, bonuses, and all other compensation. The
11 provisions of this paragraph shall apply to contracts that are
12 entered into or renewed on or after the effective date of this act.

13 E. By October 1 of each year, each district board of education
14 shall prepare a schedule of salaries and fringe benefits paid
15 administrators employed by the district, including a description of
16 the fringe benefits. The schedule shall be a public record and
17 shall be disclosed as required by the Oklahoma Open Records Act.
18 The board shall file a copy of the schedule with the State
19 Department of Education within one week of completion.

20 F. For purposes of this section, the term "administrator" shall
21 include employees who are employed and certified as superintendents,
22 assistant superintendents, principals, and assistant principals and
23 who have responsibilities for supervising classroom teachers.

24 SECTION 2. This act shall become effective July 1, 2026.

SECTION 3. It being immediately necessary for the preservation
of the public peace, health or safety, an emergency is hereby
declared to exist, by reason whereof this act shall take effect and
be in full force from and after its passage and approval.

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